



CHAPTER clxxii.

An Act to enable the mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne to purchase by agreement the undertaking of the Scotswood Bridge Company to provide for the composition by the several local authorities interested of the tolls now leviabie by the said bridge company and of the toll known as the Thorough or Great Toll now leviabie by the Newcastle Corporation and the extinction of those tolls respectively to provide for an increase in the public library rate and for other purposes. A.D. 1905.

[4th August 1905.]

WHEREAS by an Act passed in the tenth year of the reign of His late Majesty George IV. intituled "An Act for building a bridge over the River Tyne at or near a place called Scotswood in the county of Northumberland and for making convenient roads avenues and approaches thereto with branches thereout" (in this Act called "the Act of 1829") the Scotswood Bridge Company (in this Act called "the bridge company") were incorporated and authorised to construct a bridge across the River Tyne at or near Scotswood adjacent to the city together with certain roads and other works and to demand and take for the use of the said bridge and the roads in connection therewith the toll specified in the said Act: 10 Geo. 4.
c. x.

And whereas the Corporation are among the orginal proprietors named in the Act of 1829 and were on the ninth day of July one thousand eight hundred and twenty-nine and have ever since been the holders of twenty shares in the bridge company:

A.D. 1905. — And whereas the bridge company have constructed the said bridge and roads and under the powers of the Act of 1829 have raised a share capital of twenty thousand pounds divided into shares of fifty pounds each the whole of which is paid up and have borrowed moneys on mortgage and otherwise but such moneys have from time to time been repaid and the bridge company do not now owe any money upon mortgage of the undertaking :

16 & 17 Vict.
c. clxxxii. And whereas by the Newcastle-upon-Tyne Improvement Act 1853 the Corporation and the bridge company were respectively empowered to contract for the removal of a toll gate upon a road within the city and for the purchase by the Corporation and the sale by the bridge company of the interests of that company in any of the roads in the city :

And whereas under the powers of the said Act of 1853 the Corporation by deed dated the fifteenth day of February one thousand eight hundred and sixty-two contracted with the bridge company for the removal of the said toll gate within the city and purchased the roads in the city in which the bridge company had an interest :

4 Edw. 7.
c. clxii. And whereas by the Newcastle-upon-Tyne (Extension) Order 1904 scheduled to and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1904 the city was extended so as to include (among other places) the urban district of Benwell and Fenham in which district are situate certain roads belonging to the bridge company :

And whereas under the said confirming Act the Corporation are required to commute or compound for the tolls leviable by the bridge company on the said roads in the urban district of Benwell and Fenham in accordance with the terms of a provisional agreement made between the Corporation and the bridge company and dated the twenty-seventh day of July one thousand nine hundred and four and to continue to commute or compound for such tolls until the same shall be abolished :

And whereas in pursuance of the said provisions of the said Act and in accordance with the terms of the said agreement the Corporation have commuted or compounded for the said tolls upon the said roads by a payment of seven hundred pounds per annum to the bridge company and the said tolls upon the said roads in the part of the city formerly the urban district of

Benwell and Fenham except as in the said Act and in the said agreement is mentioned have ceased to be taken as on and from the ninth day of November one thousand nine hundred and four : A.D. 1905.

And whereas the bridge company are willing to sell to the Corporation and the Corporation are willing to purchase the existing undertaking of the bridge company for the consideration and upon the terms and conditions in this Act appearing and it is expedient that the provisions of this Act with respect thereto should be made :

And whereas by the Act of 1829 the bridge company are authorised to levy tolls in respect of the use of the roads belonging to that company in the county of Northumberland and the county of Durham as well as in the city and county of Newcastle-upon-Tyne and they are also authorised to levy tolls in respect of the use of the Scotswood Bridge in addition to the tolls leviable by them in respect of the use of the roads and it is expedient that powers should be conferred upon the county councils of the said counties to contribute towards the purchase of the undertaking of the bridge company in consideration of the abolition of the said tolls :

And whereas the Corporation have from time immemorial levied and are now by virtue of an Act passed in the first year of the reign of Her late Majesty Queen Victoria intituled " An Act for regulating and improving the borough of Newcastle-upon-Tyne " entitled to levy upon all goods wares and merchandise (excepting certain specified things) brought into or carried out of the city by land a toll known as the Thorough or Great Toll which toll is hereinafter referred to as " the Thorough Toll " :

And whereas it is expedient that the Thorough Toll should cease to be levied upon the terms in this Act set forth :

And whereas it is expedient to make provisions as in this Act contained in respect of the borrowing of money by the county councils of the said counties and the mayor aldermen and burgesses of the county borough of Gateshead :

And whereas it is expedient that further borrowing powers be conferred on the Corporation for the purposes of this Act :

And whereas Alexander Laing merchant of the city of Newcastle-upon-Tyne has at his own expense erected on a site

A.D. 1905. — provided by the Corporation an art gallery (known as “the Laing Art Gallery”) and by an agreement scheduled to and confirmed by the Newcastle-upon-Tyne Corporation Act 1904 the said art gallery has been vested in the Corporation to be for ever thereafter maintained as an art gallery and the cost of such maintenance will necessitate an increase in the amount of the rate leviable by the Corporation under the Public Libraries Acts :

4 Edw. 7.
c. ccxx.
55 & 56 Vict.
c. ccxxxvi. And whereas by the Newcastle-upon-Tyne Improvement Act 1892 the limit of the amount of the rate leviable by the Corporation under the Public Libraries Acts was extended from one penny in the pound to three-halfpence in the pound on the annual value of the property rated and it is expedient that the said limit should be further extended by an additional amount of one halfpenny in the pound and that such additional amount should be applied as by this Act provided :

And whereas it is expedient that other provisions as are in this Act contained should be sanctioned :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the council of the city at a meeting held on the eighth day of December one thousand nine hundred and four after ten clear days’ notice by public advertisement of such meeting and of the purpose thereof in the North Mail being a newspaper published and circulating in the city (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the city fund and city rate of the city :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the first day of March one thousand nine hundred and five being not less than fourteen days after the deposit in Parliament of the Bill for this Act :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):— A.D. 1905.

PART I.

PRELIMINARY.

1. This Act may be cited as the Newcastle-upon-Tyne Corporation (Tolls) Act 1905. Short title.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Purchase of Scotswood Bridge Company's Undertaking.

Part III.—Abolition of Tolls.

Part IV.—Increase of Public Library Rate.

Part V.—Financial and Miscellaneous.

3. In this Act unless otherwise expressly provided or the context otherwise requires— Interpreta-
tion.

“The city” means the city and county of Newcastle-upon-Tyne ;

“The Corporation” means the mayor aldermen and citizens of the city ;

“The bridge company” means the Scotswood Bridge Company ;

“The bridge undertaking” means and includes the undertaking bridge roads works lands buildings easements and real property and all the estate right title and interest of the bridge company of in or to the same (as the same respectively existed on the sixth day of July one thousand nine hundred and three) and all the rights and privileges of the bridge company ;

“The Durham Council” means the county council for the administrative county of Durham ;

“The Northumberland Council” means the county council for the administrative county of Northumberland ;

A.D. 1905.

“The Gateshead Corporation” means the mayor aldermen and burgesses of the borough of Gateshead ;

“The two councils” means the Durham Council and the Northumberland Council.

PART II.

PURCHASE OF SCOTSWOOD BRIDGE COMPANY'S UNDERTAKING.

Bridge company to sell and Corporation to purchase bridge undertaking.

4. Subject to the provisions of this Act the bridge company shall sell and the Corporation shall purchase the bridge undertaking for the consideration and on and subject to the terms and conditions in this Act contained.

Consideration for purchase.

5. The consideration for the said purchase shall be the payment by the Corporation to the bridge company of the sum of thirty-six thousand three hundred pounds and such payment shall be made on the thirty-first day of December one thousand nine hundred and five and if such payment shall not then be made the Corporation shall pay to the bridge company interest on the said sum or such part thereof as shall for the time being be unpaid at the rate of four per centum per annum until the date of payment.

Corporation to pay costs of transfer and of winding up bridge company.

6. All the costs charges and expenses reasonably incurred by the bridge company in relation to the Bill for this Act and in effecting the transfer of the bridge undertaking to the Corporation and in winding up the affairs of the bridge company shall be paid by the Corporation but the costs charges and expenses of winding up the affairs of the bridge company payable by the Corporation shall not exceed fifty pounds.

Transfer.

7. Upon the payment by the Corporation to the bridge company of the said sum of thirty-six thousand three hundred pounds the bridge undertaking shall by virtue of this Act be transferred to and absolutely vest in the Corporation freed and discharged from all claims and demands of any proprietors of shares of the bridge company and from all mortgage and other debts and liabilities of the bridge company and such transfer and vesting is hereinafter referred to as “the transfer.”

Receipt of treasurer of bridge company for purchase money.

8. The receipt in writing of the treasurer of the bridge company for any purchase money to be paid by the Corporation shall be a good and sufficient discharge for any money therein stated to have been received and the Corporation shall not

be bound to see to the application or be accountable for the non-application or misapplication thereof or any part thereof. A.D. 1905.

9. Until the transfer the bridge company shall carry on their undertaking in the ordinary course and shall perform and pay all obligations and outgoings and take all receipts in connection therewith but they shall not except with the consent of the Corporation under their common seal enter into any contract after the passing of this Act which shall extend beyond the said thirty-first day of December one thousand nine hundred and five.

Bridge company to carry on their undertaking until transfer.

10. From and after the transfer and subject to the provisions of this Act all the rights powers privileges and authorities of the bridge company under the Act of 1829 and under any enactment for the protection of the bridge company or the bridge undertaking including the right to levy demand receive and recover any tolls and charges which the bridge company may demand receive or take shall be by virtue of this Act transferred to and vested in and enure for the benefit and protection of the Corporation freed and discharged from all claims and demands of any proprietors of shares of the bridge company and from all mortgage and other debts and liabilities of the bridge company and that Act and the said enactments shall be read and have effect as if the Corporation had been therein named instead of the bridge company subject nevertheless and according to the provisions of this Act:

Application of bridge company's Act to Corporation.

Provided that none of the provisions of the Act of 1829 relating to the share or loan capital of the bridge company or to the constitution meetings or committee of management of the bridge company or to the application of tolls or to the regulation or management of the bridge company as a company shall apply to the Corporation.

11.—(1) On the day following the transfer the bridge company shall be deemed to have passed a special resolution as defined by the Companies Act 1862 for the voluntary winding up of the bridge company under the Companies Acts 1862 to 1900 and for the appointment of the then committee of management of the bridge company to be liquidators thereof and such resolution shall have effect as if the bridge company were registered under the Companies Act 1862 as a company limited by shares and the said liquidators or other the liquidators of the

Winding up and dissolution of bridge company.

A.D. 1905. bridge company shall subject to the provisions of this Act proceed to wind up the affairs of the bridge company accordingly.

(2) The creditors contributories and liquidators of the bridge company and all other persons interested including the Corporation may make any application to the High Court in relation to the winding up of the bridge company which they respectively might have made if an order had been duly made by such Court for continuing the voluntary winding up of the bridge company subject to the supervision of the Court with liberty to so apply reserved and the High Court shall have jurisdiction accordingly.

(3) For the purposes of such winding up the liquidators may retain in office such of the officers and servants of the bridge company as they may deem necessary and may pay such officers and servants such reasonable remuneration as they think fit.

(4) The liquidators of the bridge company shall as and when required by the Corporation furnish the Corporation with full information as to the proceedings taken in the winding up of the bridge company and shall allow the Corporation to inspect all books papers claims proofs vouchers and other documents relating thereto.

Application
of purchase
money.

12. The purchase money shall be applied by the liquidators of the bridge company as follows:—

First In paying and discharging all mortgage and other debts and liabilities of the bridge company and in making such other payments (if any) as shall be sanctioned by a general meeting of the bridge company :

Second In making a division of the residue thereof among the several persons whose names appear at the date of the transfer in the books of the bridge company as proprietors of shares in the capital of the bridge company or their respective executors administrators successors or assigns proportionately according to their several interests.

Bridge com-
pany's books
to be evi-
dence as to
proprietors
of capital.

13. The persons who at the date of the transfer appear in the books of the bridge company to be proprietors of shares shall unless the contrary is proved be considered to be holders of such shares for the purpose of the distribution of the assets

of the bridge company and no transfer of such shares shall be registered after the date of the transfer. A.D. 1905.

14. All deeds muniments of title maps awards agreements instruments and documents of the bridge company relating to the bridge undertaking shall be delivered to the Corporation at the time of the transfer and all minute books books of account vouchers instruments and documents belonging to the bridge company at the time of the dissolution thereof shall be then delivered to and be thenceforth preserved by the Corporation. As to muniments of title of bridge company.

15. All books and documents of or concerning the bridge company which if this Act had not been passed would have been admitted in evidence shall be admitted in evidence as if this Act had not been passed. Books of bridge company to be evidence.

16. In the event of the Corporation laying any rails wires pipes tubes cables or other apparatus on over or across Scotswood Bridge such rails wires pipes tubes cables or apparatus shall not without the consent in writing of the Tyne Improvement Commissioners be so placed and maintained as to lessen the clear headway or span of the said bridge. Headway and span of bridge to be maintained.

PART III.

ABOLITION OF TOLLS.

17.—(1) The two councils and the Gateshead Corporation shall within two years after the passing of this Act pay to the Corporation the sum of nineteen thousand nine hundred and sixty-five pounds in respect of the acquisition by the Corporation of the bridge undertaking. Abolition of tolls upon payment by two councils and Gateshead Corporation.

(2) The said sum of nineteen thousand nine hundred and sixty-five pounds shall be paid by the two councils and the Gateshead Corporation in the following proportions viz. The sum of fifteen thousand six hundred and fifty pounds by the Durham Council the sum of one thousand eight hundred and fifteen pounds by the Northumberland Council and the sum of two thousand five hundred pounds by the Gateshead Corporation.

(3) Upon payment to the Corporation of the said sum of nineteen thousand nine hundred and sixty-five pounds the Corporation shall forthwith cease to levy the tolls authorised to be taken in respect of the Scotswood Bridge and roads and the said bridge and roads shall as from the date of such payment be freed from the said tolls.

A.D. 1905. (4) From and after the date of such payment the Scotswood Bridge shall become a county bridge and shall be kept in repair accordingly and the roads shall become main roads and shall be maintained and repaired by the authority by whom the other main roads in the respective districts through which they pass are then maintained and repaired.

(5) Subject to the payment to the Corporation of the said sum of nineteen thousand nine hundred and sixty-five pounds as provided by this section the Corporation shall as from and after the expiration of five years from the passing of this Act cease to levy the Thorough Toll.

PART IV.

INCREASE OF PUBLIC LIBRARY RATE.

Public
library rate
may be in-
creased.

18. Notwithstanding anything to the contrary contained in the Public Libraries Acts 1892 to 1901 the rate or addition to a rate for the purposes of those Acts in the city for any one financial year may amount to but shall not exceed twopence in the pound:

Provided that the proceeds of any rate levied under this section in excess of three halfpence in the pound shall be applied for the purpose of the Laing Art Gallery including the payment of interest on and all instalments appropriations and sinking fund payments in respect of moneys borrowed for or in respect of the site of the Laing Art Gallery.

PART V.

FINANCIAL AND MISCELLANEOUS.

Power to
borrow.

19. The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest on the following securities and for the following purposes such moneys as they from time to time think requisite for those respective purposes not exceeding the following sums (that is to say) :—

On the security of the city fund and city rate—

(A) For paying the costs charges and expenses of and in relation to this Act as hereinafter defined the sum requisite for the purpose:

On the security of the tolls of the Scotswood Bridge and roads and (collaterally) the city fund and city rate— A.D. 1905.

(B) For and in connection with the purchase of the bridge undertaking such sums as may be necessary not exceeding thirty-seven thousand pounds:

And in calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing under and for the purposes of this Act shall not be restricted by any of the provisions of the Public Health Acts.

20. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to and in relation to all mortgages made under the powers of this Act (that is to say):— Provision as to mortgages.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages); and

Section 238 (Transfer of mortgages).

21. The following sections of the following Acts (that is to say):— Incorporating certain sections of Acts of 1892 and 1899.

Of the Newcastle-upon-Tyne Improvement Act 1892—

Section 145 (Corporation not to regard trusts);

Of the Newcastle-upon-Tyne Tramways and Improvement Act 1899—

Section 79 (Sinking funds for moneys borrowed and hereafter to be borrowed);

Section 80 (Provision as to increase and reduction of payments to sinking funds);

Section 82 (Power to borrow under Local Loans Act 1875);

Section 83 (Power to re-borrow);

Section 85 (Application of borrowed moneys);

Section 86 (Appointment of receiver);

Section 87 (Saving of charges);

Section 90 (Protection of lenders from inquiry);

Section 96 (Annual return to Local Government Board with respect to sinking funds);

A.D. 1905. shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to the moneys borrowed by the Corporation under the powers of this Act and to the repayment thereof.

Periods for repayment of borrowed moneys.

22. The prescribed period mentioned in the said sections 79 80 and 82 of the Newcastle-upon-Tyne Tramways and Improvement Act 1899 incorporated with this Act shall be as regards all moneys borrowed under the powers of this Act or under the powers of the Local Loans Act 1875 for the purposes respectively mentioned in the following subsections of the section of this Act the marginal note whereof is "Power to borrow" the following respective periods (that is to say) :—

For the purpose in subsection (A) five years from the passing of this Act :

For the purpose in subsection (B) fifty years from the date of the borrowing of such money.

Application of moneys received from two councils and Gateshead Corporation.

23. All moneys received by the Corporation under the provisions of Part III. of this Act shall be applied by the Corporation in or towards repayment of any moneys borrowed by them for the purposes of this Act.

Expenses of execution of Act.

24. All expenses incurred by the Corporation in carrying into execution the provisions of this Act in respect of the bridge undertaking including all costs charges and expenses of and in relation to the borrowing of any moneys of the Corporation under the powers of this Act and all interest on and all instalments appropriations and sinking fund payments in respect of such borrowed moneys but except such of those expenses as are properly chargeable to capital and payable out of borrowed moneys shall be paid out of the tolls of the Scotswood Bridge and roads and if and so far as those tolls prove insufficient for the purpose out of the city fund and city rate.

Incorporation of certain sections of Act of 1902.

25. The following provisions of the Newcastle-upon-Tyne Corporation Tramways Extension Act 1902 shall be incorporated with and form part of this Act (that is to say) :—

Section 44 (Audit of accounts);

Section 45 (Inquiries by and expenses of Local Government Board);

Section 46 (Powers of Act cumulative).

26. The two councils respectively may (without any further sanction consent or authority) borrow any moneys which they may require for making any payments under the powers of this Act for such period in each case not exceeding fifty years as the Local Government Board may determine but subject to the provisions of this section the provisions of section 69 of the Local Government Act 1888 shall apply in respect of any moneys so borrowed.

A.D. 1905.
Power to
two councils
to borrow.

27. The Gateshead Corporation may borrow any moneys which they may require for making any payments under the powers of this Act and the provisions of sections 144 to 154 (both inclusive) of the Gateshead Corporation Act 1903 shall apply in respect of the exercise by the Gateshead Corporation of any such borrowing powers.

Power to
Gateshead
Corporation
to borrow.

28. The sum payable by the Northumberland Council to the Corporation under the provisions of this Act and any sums borrowed by the Northumberland Council for the purpose of such payment shall be charged upon the whole of the administrative county of Northumberland with the exception of the borough of Berwick-upon-Tweed and any moneys required for repayment of principal or payment of interest in respect of any moneys borrowed by the Northumberland Council shall be deemed to be expenditure restricted by law to the aforesaid part of the said county and shall be special expenses incurred in respect of that part and shall be raised accordingly.

Power to
Northumber-
land County
Council to
make contri-
bution spe-
cial county
expenses.

29.—(1) The clerk to the Northumberland Council the clerk to the Durham Council and the town clerk of Gateshead shall respectively within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any money raised under this Act by the two councils or the Gateshead Corporation and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which

Return to
Local Go-
vernment
Board as to
repayment of
debt.

A.D. 1905. — have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of their respectively failing to make such return the officer by whom the same is required to be made shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that any instalment or annual payment required to be paid or any sum required to be appropriated or set apart (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) has not been paid appropriated or set apart or that any portion of any sinking fund has been applied to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Crown
rights.

30. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of Act.

31. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund or city rate or out of moneys to be borrowed under the provisions of this Act as hereinbefore provided.

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